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Pages:
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Recorder's Office, Los Angeles County,
California

05/29/12 AT 04:25PM

FEES:	63.00
TAXES:	0.00
OTHER:	0.00
PAID:	63.00



LEADSHEET



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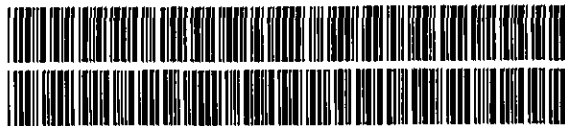
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DAR - Mail (Hard Copy)



THIS FORM IS NOT TO BE DUPLICATED

E647M2

**Recording Requested by and
When Recorded Return to:**
FIRST AMERICAN TITLE INS. CO.
LOSS MITIGATION TITLE SERVICES
P.O. Box 27670
SANTA ANA, CA 92799

ATTENTION: LMTS



THIS SPACE FOR RECORDERS USE ONLY

Loan Modification Agreement

STATE: CA
COUNTY: Los Angeles
ORDER: 6908421

8

When recorded mail to: #:6908421

First American Title

Loss Mitigation Title Services 75.26

P.O. Box 27670

Santa Ana, CA 92799

RE: MARTINEZ - MOD REC SVC

Loan #: 134795766

SPACE ABOVE THIS LINE FOR RECORDER'S USE

LOAN MODIFICATION AGREEMENT

Fixed Interest Rate Balloon Step-Recorded

This Loan Modification Agreement ("Agreement"), made this 26th day of August 2011, between ARCENIO MARTINEZ, CLAUDIA MARTINEZ and Bank of America, N.A. (Lender), amends and supplements (1) the Mortgage, Deed of Trust, or Deed to Secure Debt (the Security Instrument), dated the 11th day of April 2006 and recorded on the 11th day of April 2006 in Book No. NONE, Page No. NONE as Document No. 060855636 in the Official Records of LOS ANGELES County, in the State of CALIFORNIA, and (2) the Note bearing the same date as, and secured by, the Security Instrument, which covers the real and personal property described in the Security Instrument and defined therein as in the 'Property', located at 4724-4724 1/2 WEST 147TH ST, LAWNDAL, CA 90260.

SEE EXHIBIT 2 ATTACHED
HERETO AND MADE A PART HEREOF

Original Principal \$508,000.00
Legal
Exhibit A
REC
* 4/19/06

In consideration of the mutual promises and agreements exchanged, the parties hereto agree as follows (notwithstanding anything to the contrary contained in the Note or Security Instrument):

- As of the 1st day of October 2011, the amount payable under the Note or Security Instrument (the "Unpaid Principal Balance") is U.S. \$709,392.32, consisting of the amount(s) loaned to the Borrower by Lender, which may include, but are not limited to, any past due principal payments, interest, fees and/or costs capitalized to date. All costs and expenses incurred by Lender in connection with this Agreement, including recording fees, title examination, and attorney's fees, shall be paid by the Borrower and shall be secured by the Security Instrument, unless stipulated otherwise by Lender.

Borrower understand that my monthly principal and interest payment for the Interest Bearing Principal Balance is being amortized over 427 months from the date of my first modification payment. However, the scheduled maturity date of my loan will remain unchanged. This means that even if I make all of the scheduled payments under this modification on time I will have a remaining balance at the maturity of my loan which is called a balloon payment, and I will need to make arrangements to pay this remaining balance.

- The Borrower promises to pay the Unpaid Principal Balance, plus interest, to the order of the Lender. Interest will be charged on the Unpaid Principal Balance from the 1st day of September 2011 of the modified term at the yearly rate of (See Below Schedule). The Borrower promises to make monthly payments of (See Below Schedule) beginning on the 1st day of October 2011. If on the 1st day of May 2036 (the "Maturity Date"), the Borrower still owes amounts under the Note and Security Instrument, as amended by this Agreement, the Borrower will pay these amounts in full on the Maturity Date.

The payment schedule for this modified Loan is as follows:

Years	Interest Rate	Interest Rate Change Date	Type of Payment	Monthly Payment	Payment Begins on	Number of Monthly Payments
1-3	3.000%	9/1/2011	Principal and Interest	\$2,704.82	10/1/2011	36
4	4.000%	9/1/2014	Principal and Interest	\$3,088.61	10/1/2014	12
5	4.125%	9/1/2015	Principal and Interest	\$3,137.29	10/1/2015	248

- If all or any part of the Property or any interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by the Security Instrument.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is delivered or mailed within which Borrower must pay all sums secured by the Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by the Security Instrument without further notice or demand on Borrower.

- Borrower also will comply with all other covenants, agreements, and requirements of the Security Instrument, including without limitation, Borrower's covenants and agreements to make all payments of taxes, insurance premiums, assessments, escrow items, impounds, and all other payments that Borrower is obligated to make under the Security Instrument; however, the following terms and provisions are forever canceled, null and void, as of the date specified in paragraph No. 1 above:

(a) all terms and provisions of the Note and Security Instrument (if any) providing for, implementing, or relating to, any change or adjustment in the rate of interest payable under the Note, including, where applicable, the Timely Payment Rewards rate reduction, as described in paragraph 1 of the Timely Payment Rewards Addendum to Note and paragraph A.1. of the Timely Payment Rewards Rider. By executing this Agreement, Borrower waives any Timely Payment Rewards rate reduction to which Borrower may have otherwise been entitled; and

(b) all terms and provisions of any adjustable rate rider, or Timely Payment Rewards Rider, where applicable, or other instrument or document that is affixed to, wholly or partially incorporated into, or is part of, the Note or Security Instrument and that contains any such terms and provisions as those referred to in (a) above.

- The Borrower will make such payments at PO Box 515503, Los Angeles, CA 90051-6803 or at such other place as the Lender may require.

Bank of America, N.A.

Loan# 134795766

Page 1 of 2

4

6. Nothing in this agreement shall be understood or construed to be a satisfaction or release in whole or in part of the Note and Security Instrument. Except as otherwise specifically provided in this Agreement, the Note and Security Instrument will remain unchanged, and the Borrower and Lender will be bound by, and comply with, all terms and provisions thereof, as amended by this Agreement.
7. In consideration of this Modification, Borrower agrees that if any document related to the Security Instrument, Note and/or Modification is lost, misplaced, misstated, inaccurately reflects the true and correct terms and conditions of the loan as modified, or is otherwise missing, Borrower(s) will comply with Lender's request to execute, acknowledge, initial and deliver to Lender any documentation Lender deems necessary. If the original promissory note is replaced the Lender hereby indemnifies the Borrower(s) against any loss associated with a demand on the original note. All documents Lender requests of Borrower(s) shall be referred to as Documents. Borrower agrees to deliver the Documents within ten (10) days after receipt by Borrower(s) of a written request for such replacement.

As evidenced by their signatures below, the Borrower and the Lender agree to the foregoing.

[Signature]
ARCELIO MARTINEZ
[Signature]
CLAUDIA MARTINEZ

8-31-2011
Date
8-31-2011
Date

STATE OF California
County OF Los Angeles

On August 31, 2011 Before me, Lesly G. Lotan Notary Public, personally appeared
Arcelio Martinez + Claudia Martinez

personally known to me (or proved to me on the basis of satisfactory evidence) to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signatures (s) on the instrument the person(s), or entity upon behalf of which the person(s) acted, executed the instrument.

WITNESS my hand and official seal. Signature Lesly G. Lotan
Do Not Write Below This Line.

.....
Bank of America, N.A.
THIS SECTION IS FOR INTERNAL BANK OF AMERICA, N.A. USE ONLY

By: [Signature] Dated: 10-25-11

STATE OF San Simon
County OF _____

On _____ Before me, _____ Notary Public, personally appears

personally known to me (or proved to me on the basis of satisfactory evidence) to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signatures (s) on the instrument the person(s), or entity upon behalf of which the person(s) acted, executed the instrument.

WITNESS my hand and official seal.
Signature

5

RECORDING REQUESTED BY: Bank of America, N.A. Attn Home Retention Division: CA6-919-01-43 400 National Way Simi Valley, CA 93065	
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Loan #: 134795766

FOR INTERNAL USE ONLY
SEE EXHIBIT 2 ATTACHED
HERETO AND MADE A PART HEREOF

MODIFICATION BANKRUPTCY DISCLOSURE RIDER

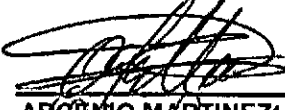
THIS MODIFICATION BANKRUPTCY DISCLOSURE RIDER, effective the 26th day of August 2011, is incorporated into and shall be deemed to amend and supplement the Loan Modification Agreement of the same date made by ARGENIO MARTINEZ, CLAUDIA MARTINEZ and Bank of America, N.A. (Lender), covering the Property described in the Loan Modification Agreement Located at 4724-4724 1/2 WEST 147TH ST, LAWNDAL, CA 90260 90260.

Borrower understands and acknowledges that if Borrower breaches any of the terms and conditions of the Loan Modification Agreement, including but not limited to timely making the payments described in the Loan Modification Agreement, that Lender has the right to foreclose the Property in accordance with the terms and conditions of the underlying Security Instruments.

In addition to the covenants and agreements made in the Loan Modification Agreement, the Borrower and Lender covenant and agree as follows:

1. Borrower was discharged in a Chapter 7 bankruptcy proceeding after the execution of the Note and Security Instruments;
2. Borrower has or reasonably expects to have the ability to make the payments specified in the Loan Modification Agreement; and
3. The Loan Modification Agreement was entered into consensually and it does not affect the discharge of Borrower's personal liability on the Note;

Borrower understands and acknowledges that Borrower has had an opportunity to consult an attorney of Borrower's own choosing before Borrower executed the Loan Modification Agreement or this Modification Bankruptcy Disclosure Rider, and Borrower has either consulted with an attorney or has declined the opportunity to consult with an attorney.



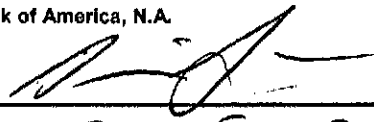
ARGENIO MARTINEZ


CLAUDIA MARTINEZ

8-31-2011

Dated
8-31-2011

Dated

Bank of America, N.A.


Brian Simon
Dated 10-25-11

6

Bank of America, N.A.
Attn Home Retention Division: CA6-919-01-43
400 National Way
Simi Valley, CA 93065

Loan #: 134795766

Acknowledgment

State of California

County of Los Angeles

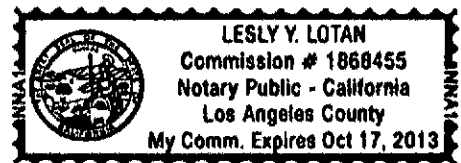
on August 31, 2011 before me Lesly Y. Lotan, Notary Public
(insert name & title of the officer)

personally appeared Arcenio Martinez + Claudia Martinez
who proved to me on the basis of satisfactory evidence to be person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal

Signature Lesly Y. Lotan (Seal)



Loan# 134795766

ACKNOWLEDGMENT

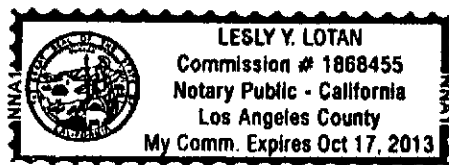
State of California
County of Los Angeles

On August 31, 2011 before me, Lesly Y. Lotan, Notary Public
(insert name and title of the officer)

personally appeared Arcenio Martinez & Claudia Martinez,
who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are
subscribed to the within instrument and acknowledged to me that he/she/they executed the same in
his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the
person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing
paragraph is true and correct.

WITNESS my hand and official seal.



Signature Lesly Y. Lotan (Seal)

8

ACKNOWLEDGMENT

State of California
County of Ventura

On October 25, 2011 before me, Sophia Rincon, Notary Public
(insert name and title of the officer)

personally appeared Brian Simon, AVP
who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are
subscribed to the within instrument and acknowledged to me that he/~~she~~/they executed the same in
his/~~her~~/their authorized capacity(ies), and that by his/~~her~~/their signature(s) on the instrument the
person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing
paragraph is true and correct.

WITNESS my hand and official seal.

Signature  (Seal)



EXHIBIT "ONE" ✓

Legal Description

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28

Parcel 1:

The West 40 feet of Lot 35 of Tract 856, in the City of Lawndale, County of Los Angeles, State of California, as per map recorded in Book 16 Pages 96 of Maps, in the office of the County Recorder of said county.

Parcel 2:

An exclusive, non-severable easement over that portion of the East 40.00 feet of the West 80.00 feet of Lot 35 of Tract 856, in the City of Lawndale, County of Los Angeles, State of California.

Said easement shall encompass that land within metes and bounds starting from a point at the centerline of West 147th street and proceeding Southerly for a distance of 161.0 feet along the West boundary of the East 40 feet of the West 80 feet of said Lot 35, thence Easterly a distance of 2.1 feet parallel to said centerline of 147th street, thence Northerly a distance of 31.0 feet, thence Easterly, parallel to the said centerline of 147th Street, a distance of 1.0 feet, thence Northerly to the said centerline of 147th street, thence Westerly to the point of origin.

Said grant of easement affects only that portion of said metes and bounds lying on the Prewitt property and is intended to encompass those portions of the existing driveway, block wall and two-story building owned by Gonzalez and situated on the West 40 feet of said Lot 35 that encroach on the adjacent prewitt property (East 40 feet of the West 80 feet of said Lot 35), no less and no more.

In case of conflict between the foregoing legal description and the actual said encroachment, the said encroachment shall be deemed to determine the correct boundaries of the easement.

Assessor's Parcel No: 4078-007-007

04/19/05

06 0855636